EXHIBIT A

ORDINANCE NO._____

AN ORDINANCE ADOPTED BY THE VOTERS OF THE CITY OF FAIRFIELD AMENDING SECTIONS OF ARTICLE VII OF CHAPTER 18 OF THE FAIRFIELD MUNICIPAL CODE TO EXTEND AND INCREASE THE RATE OF THE EXISTING TRANSACTIONS AND USE TAX BY 1%, FROM 1% TO 2% UNTIL ENDED BY VOTERS, TO BE ADMINISTERED BY THE CALIFORNIA DEPARTMENT OF TAX AND FEE ADMINISTRATION

THE VOTERS OF THE CITY OF FAIRFIELD DO HEREBY ORDAIN AS FOLLOWS:

Section 1. Section 18.74 of Article VII of Chapter 18 of the Fairfield Municipal Code is hereby amended to read as follows (additional text underlined, deleted text struck through):

"**18.74. Transactions Tax Rate.**

For the privilege of selling tangible personal property at retail, a tax is hereby imposed upon all retailers in the incorporated territory of the City at the rate of ~~1.0~~ 2.0% of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in said territory on and after the operative date of this ordinance."

Section 2. Section 18.76 of Article VII of Chapter 18 of the Fairfield Municipal Code is hereby amended to read as follows (additional text underlined, deleted text struck through):

"**18.76. Use Tax Rate.**

An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on and after the operative date of this ordinance for storage, use or other consumption in said territory at the rate of ~~1.0~~ 2.0% of the sales price of the property. The sales price shall include delivery charges when such charges are subject to state sales or use tax regardless of the place to which delivery is made."

Section 3. Section 18.86 of Article VII of Chapter 18 of the Fairfield Municipal Code is hereby amended to read as follows (additional text underlined, deleted text struck through):

"**18.86. Termination Date.**

The authority to levy the tax imposed by this ordinance shall remain in effect until repealed by the voters of the City of Fairfield. ~~expire on March 31, 2033, at 11:59 p.m.~~"

Section 4. CDTFA. All references in Article VII of Chapter 18 of the Fairfield Municipal Code to the "State Board of Equalization" are hereby amended to instead refer to the "California Department of Tax and Fee Administration."

Section 5. Authority for Transactions and Use Tax. The City of Fairfield's 1% increase of its transactions and use tax rate, resulting in a total City transactions and use tax rate of 2%, is authorized under Revenue and Taxation Code Sections 7285.9 and 7294.3. Revenue and Taxation Code Section 7285.9 provides the authority for 1.875% of the 2% total City transactions and use tax rate, and Revenue and Taxation Code Section 7294.3 provides the authority for 0.125% of the 2% total City transactions and use tax rate.

Section 6. Intended Amendment. It is the intent of the voters to amend Article VII only as specified in this Ordinance to extend and increase the rate of the existing City of Fairfield ("City") transactions and use tax in Article VII of Chapter 18 of the Fairfield Municipal Code. Except as specifically amended in this Ordinance, the remaining provisions of Article VII of Chapter 18 of the Fairfield Municipal Code shall remain in full force and effect. If the transactions and use tax increase of 1.0% in this Ordinance is found to be invalid for any reason, the City Council may reduce such increase to 0.875%, for a total City transactions and use tax rate of 1.875%.

Section 7. Severability. If any provision of this Ordinance or the application thereof to any person or circumstance is held invalid, the remainder of the Ordinance and the application of such provision to other persons or circumstances shall not be affected thereby.

Section 8. Effective Date and Expiration. This Ordinance shall take effect immediately upon approval by the voters and shall remain in effect until repealed by the voters of the City of Fairfield.

APPROVED at a regular meeting of the City Council of the City of Fairfield on July __, 2026 and

PASSED AND ADOPTED by the voters of the City of Fairfield, State of California, at the General Municipal Election held on November 3, 2026.

_____
[insert name], Mayor

Attest:

_____
Karen L. Rees, City Clerk

Approved as to Form:

_____
David Lim, City Attorney